

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

NATHANIEL BOSTIC,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER AUGER, Tax No. 966448, SERGEANT
BENJAMIN FUNG, Tax No. 951749, POLICE OFFICER
LUKE JACKSON, Tax No. 966638, POLICE OFFICER
JOHN VALVERDE, Tax No. 967376, and POLICE
OFFICER RUDY GUAN, Tax No. 960623,

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
November 20, 2023

Yours, etc.

David M. Hazan
JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007,
POLICE OFFICER CHRISTOPHER AUGER, Tax No. 966448, Transit Bureau District
34, Coney Island-Stillwell Av Station, Brooklyn, NY 11224

SERGEANT BENJAMIN FUNG, Tax No. 951749, Department Comm Employee
Relations CU

POLICE OFFICER LUKE JACKSON, Tax No. 966638, Transit Bureau District 34, Coney
Island-Stillwell Av Station, Brooklyn, NY 11224

POLICE OFFICER JOHN VALVERDE, Tax No. 967376, Transit Bureau District 34,
Coney Island-Stillwell Av Station, Brooklyn, NY 11224

POLICE OFFICER RUDY GUAN, Tax No. 960623, Transit Bureau District 34, Coney
Island-Stillwell Av Station, Brooklyn, NY 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
NATHANIEL BOSTIC,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER AUGER, Tax No. 966448, SERGEANT
BENJAMIN FUNG, Tax No. 951749, POLICE OFFICER
LUKE JACKSON, Tax No. 966638, POLICE OFFICER
JOHN VALVERDE, Tax No. 967376, and POLICE
OFFICER RUDY GUAN, Tax No. 960623,

Defendants.
----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff NATHANIEL BOSTIC, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. The claims arise from an incident that allegedly occurred on or about November 21, 2020, at which time an unidentified individual entered a Chinese bakery located at 5712 8th Avenue, Brooklyn, NY 11220, grabbed a pink bag that contained one of the store employee's cash, from a shelf located near the entrance to the store and ran out of the store. Plaintiff was shopping at the store at the time of the incident and as the thief ran out of the store, he accidentally dropped the bag of money near where plaintiff was standing. The store employee recovered the bag filled with cash from the ground. Plaintiff did not behave in a manner indicative of someone who was involved in a robbery, nor did he attempt to leave the location after the robbery occurred. Instead, he remained at the location to see whether he could be of any assistance to the police because it did not appear as if anyone else at the location spoke English. However, when the individually named defendant police officers arrived at the location, they saw plaintiff who was the only African American male present, unlawfully handcuffed him and falsely arrested him without probable cause or legal justification. The defendant police officers who initially responded to the location did not speak Cantonese and were unable to determine what occurred and who allegedly tried to steal the bag of money from the store. The officers falsely arrested plaintiff without an objective factual basis to establish probable cause to arrest and/or prosecute plaintiff for committing the crime. The officers transported

plaintiff to the Transit District 34 Precinct, against his will, whereat he was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours. The officers charged plaintiff with committing crimes he did not commit and that the officers lacked probable cause to accuse him of committing. The officers also provided the DA's Office with false, misleading, and incomplete evidence to support their purported basis for arresting plaintiff and charging him with crimes. Plaintiff was transported to Kings County Central Booking where he was detained until he was arraigned in Kings County Criminal Court approximately 24 hours after he was arrested. Plaintiff was charged with crimes he did not commit and that the officers had absolutely no factual basis to accuse him of committing, including Grand Larceny, Criminal Possession of Stolen Property, and Petit Larceny. Plaintiff was maliciously prosecuted without probable cause, based upon the false, misleading, and incomplete allegations made against him by the defendants to the DA's Office. Importantly, neither the crime victim, nor any witnesses from the store ever signed the criminal court complaint or any other document accusing plaintiff of committing the crime, in part, because if an individual who spoke the same language as those people had spoken with them about what they saw and who committed the crime, it would have become clear that there was not probable cause to arrest and/or prosecute plaintiff for committing these crimes. Plaintiff was released from custody on his own recognizance at arraignment. He was required to appear in Court on seven occasions and endured a criminal prosecution for allegedly committing felony crimes that lasted for approximately 1 year. Plaintiff was never indicted for committing these crimes. All charges brought against plaintiff were dismissed and sealed in their entirety on November 24, 2021, after the court granted the District Attorney's Office's motion to dismiss all charges brought against plaintiff. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely imprisoned, falsely arrested, illegally seized, maliciously prosecuted, and denied plaintiff the right to due process/ the right to a fair trial, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

1. Plaintiff NATHANIEL BOSTIC is a resident of the state of New York.
2. Defendant POLICE OFFICER CHRISTOPHER AUGER, Tax No. 966448, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
3. Defendant POLICE OFFICER CHRISTOPHER AUGER, Tax No. 966448, is and was at all times relevant herein, assigned to the Transit Bureau District 34 command.
4. Defendant POLICE OFFICER CHRISTOPHER AUGER, Tax No. 966448, is being sued in his individual and official capacity.

5. Defendant SERGEANT BENJAMIN FUNG, Tax No. 951749, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

Defendant SERGEANT BENJAMIN FUNG, Tax No. 951749, was at all times relevant herein, assigned to the Transit Bureau District 34 command, and is currently assigned to the Department Comm Employee Relations CU.

6. Defendant SERGEANT BENJAMIN FUNG, Tax No. 951749, is being sued in his individual and official capacity.

7. Defendant POLICE OFFICER LUKE JACKSON, Tax No. 966638, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. Defendant POLICE OFFICER LUKE JACKSON, Tax No. 966638, is and was at all times relevant herein, assigned to the Transit Bureau District 34 command.

9. Defendant POLICE OFFICER LUKE JACKSON, Tax No. 966638, is being sued in his individual and official capacity.

10. Defendant POLICE OFFICER JOHN VALVERDE, Tax No. 967376, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

11. Defendant POLICE OFFICER JOHN VALVERDE, Tax No. 967376, was at all times relevant herein, assigned to the Transit Bureau District 34 command.

12. Defendant POLICE OFFICER JOHN VALVERDE, Tax No. 967376, is being sued in his individual and official capacity.

13. Defendant POLICE OFFICER RUDY GUAN, Tax No. 960623, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

14. Defendant POLICE OFFICER RUDY GUAN, Tax No. 960623, is and was at all times relevant herein, assigned to the Transit Bureau District 34 command.

15. Defendant POLICE OFFICER RUDY GUAN, Tax No. 960623, is being sued in his individual and official capacity.

16. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York

City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

18. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK and also attended a 50-h Hearing on September 29, 2022, in compliance with the Municipal Law Section 50.

19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. By way of background, the claims arise from an incident that allegedly occurred on or about November 21, 2020, at which time an unidentified individual entered a Chinese bakery located at 5712 8th Avenue, Brooklyn, NY 11220, grabbed a pink bag that contained one of the store employee's cash, from a shelf located near the entrance to the store and ran out of the store.

23. Plaintiff was shopping at the store at the time of the incident and as the thief ran out of the store, he accidentally dropped the bag of money near where plaintiff was standing.

24. The store employee recovered the bag filled with cash from the ground.

25. Plaintiff did not behave in a manner indicative of someone who was involved in a robbery, nor did he attempt to leave the location after the robbery occurred.

26. Instead, he remained at the location to see whether he could be of any assistance to the police because it did not appear as if anyone else at the location spoke English.

27. However, when the individually named defendant police officers arrived at the location they saw plaintiff, who was the only African American male present, unlawfully handcuffed him, and falsely arrested him, without probable cause or legal justification.

28. The defendant police officers who initially responded to the location did not speak Cantonese and were unable to determine what occurred and who allegedly tried to steal the bag of money from the store.

29. Plaintiff didn't commit a crime while he was at the store that day, and the officers did not possess objective facts that established probable cause to believe he was the perpetrator of the crime.

30. The officers admit on the body camera footage that they had no idea what was going on because of the language barrier; therefore, they had a responsibility to have someone come to the scene and either translate for them so that they could conduct a normal investigation from scratch or allow an officer who could speak the language of the people in the store to conduct an investigation himself.

31. The officers falsely arrested plaintiff without an objective factual basis to establish probable cause to arrest and/or prosecute plaintiff for committing the crime.

32. The officers transported plaintiff to the Transit District 34 Precinct, against his will, whereat he was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours.

33. The officers charged plaintiff with committing crimes he did not commit and that the officers lacked probable cause to accuse him of committing.

34. The officers also provided the DA's Office with false, misleading, and incomplete evidence to support their purported basis for arresting plaintiff and charging him with crimes.

35. Plaintiff was transported to Kings County Central Booking where he was detained until he was arraigned in Kings County Criminal Court approximately 24 hours after he was arrested.

36. Plaintiff was charged with crimes he did not commit and that the officers had absolutely no factual basis to accuse him of committing, including Grand Larceny, Criminal Possession of Stolen Property, and Petit Larceny.

37. Plaintiff was maliciously prosecuted without probable cause, based upon the false, misleading, and incomplete allegations made against him by the defendants to the DA's Office.

38. Importantly, neither the crime victim, nor any witnesses from the store ever signed the criminal court complaint or any other document accusing plaintiff of committing the

crime, in part, because if an individual who spoke the same language as those people had spoken with them about what they saw and who committed the crime, it would have become clear that there was not probable cause to arrest and/or prosecute plaintiff for committing these crimes.

39. Plaintiff was released from custody on his own recognizance at arraignment.

40. He was required to appear in Court on seven occasions and endured a criminal prosecution for allegedly committing felony crimes that lasted for approximately 1 year.

41. Plaintiff was never indicted for committing these crimes.

42. All charges brought against Nathaniel Bostic were dismissed and sealed in their entirety on November 24, 2021, after the court granted the District Attorney's Office's motion to dismiss all charges brought against Nathaniel Bostic.

43. All criminal charges terminated in plaintiff's favor.

44. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

45. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely imprisoned, falsely arrested, illegally seized, maliciously prosecuted, and denied plaintiff the right to due process/ the right to a fair trial, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

46. At no time relevant herein did defendants possess an objective basis to reasonably believe plaintiff committed a crime or violated the law in any way and they lacked probable cause to arrest plaintiff.

47. At no time relevant herein did plaintiff commit a crime or violate the law in any way.

48. At no time relevant herein did defendants possess objective facts that would establish probable cause to arrest or prosecute plaintiff.

49. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely imprisoned, falsely arrested, illegally seized, maliciously prosecuted, denied the right to due process/ the right to a fair trial, assaulted, battered and subjected to the use of excessive force in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

50. The unlawful stop, questioning, frisk, search, false imprisonment, false arrest, illegal seizure, malicious prosecution, and denial of the right to due process/ the right to a fair trial to plaintiff by the individually named defendants caused plaintiff to sustain physical, economic, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's First, Fourth Amendment, and Fourteenth Amendment Rights

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The individually named police officer defendants while acting in concert and within the scope of their authority unlawfully stopped, questioned, frisked, searched plaintiff, caused plaintiff to be unlawfully searched, seized, falsely arrested, falsely imprisoned, maliciously prosecuted and denied the right to a fair trial without probable cause, in violation of plaintiff's right to be free of an unreasonable search and seizure and denial of the right to due process pursuant to the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty pursuant to the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

60. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The illegal search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

66. Defendants lacked probable cause to search plaintiff.

67. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and the United States Constitution.

72. Defendants commenced and continued a criminal proceeding against plaintiff.

73. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

74. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

75. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

76. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City of New York, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment Right to Due Process/ Right to a Fair Trial

80. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 79 with the same force and effect as if fully set forth herein.

81. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

82. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

83. Defendants signed a false and misleading Criminal Court Complaint and forwarded it to prosecutors in the Kings County District Attorney's Office.

84. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

85. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Failure to Intervene

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

90. Defendants failed to intervene to prevent the unlawful conduct described herein.

91. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

94. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

95. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

TENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 98 with the same force and effect as if more fully set forth at length herein.

97. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

98. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

99. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

100. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff NATHANIEL BOSTIC demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages, costs, and reasonable attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 20, 2023

By: David M Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 20, 2023

David M Hazan

DAVID M. HAZAN